

Senate File 512

S-3020

1 Amend Senate File 512 as follows:

2 1. Page 1, after line 7 by inserting:

3 <Sec. _____. Section 614.1, Code 2025, is amended by adding
4 the following new subsection:

5 NEW SUBSECTION. 11A. *Sexual abuse, human trafficking, and*
6 *sexual exploitation of a minor.* No time limitation shall apply
7 to an action brought for damages for an injury suffered as
8 a result of sexual abuse as defined in section 709.1, sexual
9 abuse in the first degree in violation of section 709.2, sexual
10 abuse in the second degree in violation of section 709.3,
11 sexual abuse in the third degree in violation of section 709.4,
12 sexual exploitation by a counselor, therapist, school employee,
13 or adult providing training or instruction in violation of
14 section 709.15, human trafficking in violation of section
15 710A.2, and sexual exploitation of a minor in violation of
16 section 728.12. This subsection shall apply regardless of the
17 theory of liability in the civil action, including against
18 civil defendants who were not liable in the related criminal
19 action, if any.

20 Sec. _____. Section 614.1, subsection 12, Code 2025, is
21 amended to read as follows:

22 12. ~~*Sexual abuse or sexual exploitation by a counselor,*~~
23 ~~*therapist, school employee, or adult providing training or*~~
24 ~~*instruction.*~~ An action for damages for injury suffered as
25 a result of ~~sexual abuse, as defined in [section 709.1](#), by a~~
26 ~~counselor, therapist, school employee, or adult providing~~
27 ~~training or instruction, as defined in [section 709.15](#), or as a~~
28 ~~result of sexual exploitation by a counselor, therapist, school~~
29 ~~employee, or adult providing training or instruction~~ as defined
30 in section 709.15, shall be brought within five years of the
31 date the victim was last treated by the counselor or therapist,
32 or within five years of the date the victim was last enrolled
33 in or attended the school.

34 Sec. _____. Section 669.13, subsection 1, Code 2025, is
35 amended to read as follows:

1 1. Except as provided in section 614.1, subsections 11A
2 and 12, and section 614.8, a claim or suit otherwise permitted
3 under this chapter shall be forever barred, unless within two
4 years after the claim accrued, the claim is made in writing and
5 filed with the director of the department of management under
6 this chapter. The time to begin a suit under this chapter
7 shall be extended for a period of six months from the date
8 of mailing of notice to the claimant by the attorney general
9 as to the final disposition of the claim or from the date of
10 withdrawal of the claim under section 669.5, if the time to
11 begin suit would otherwise expire before the end of the period.

12 Sec. _____. Section 670.5, unnumbered paragraph 1, Code 2025,
13 is amended to read as follows:

14 Except as provided in section 614.1, subsections 11A
15 and 12, and section 614.8, a person who claims damages from
16 any municipality or any officer, employee or agent of a
17 municipality for or on account of any wrongful death, loss, or
18 injury within the scope of section 670.2 or section 670.8 or
19 under common law shall commence an action therefor within two
20 years after the alleged wrongful death, loss, or injury.

21 Sec. _____. REPEAL. Section 614.8A, Code 2025, is repealed.

22 Sec. _____. REVIVAL.

23 1. Every claim or cause of action brought against any party
24 alleging intentional or negligent acts or omissions by a person
25 for physical, psychological, or other injury or condition
26 suffered as a result of conduct which would constitute sexual
27 abuse as defined in section 709.1, which is barred as of the
28 effective date of this Act because the applicable period of
29 limitation has expired or the plaintiff previously failed to
30 file a petition, is hereby revived.

31 2. Dismissal of such a previous action, ordered before the
32 effective date of this Act, on grounds that the action was
33 time-barred, or for failure of a party to file a petition,
34 shall not be grounds for dismissal of a revival action pursuant
35 to this section.

1 Sec. _____. EFFECTIVE DATE. This Act, being deemed of
2 immediate importance, takes effect upon enactment.>

3 2. Title page, line 1, by striking <actions> and inserting
4 <actions, including civil actions brought by victims of sexual
5 abuse, human trafficking, or sexual exploitation, and including
6 effective date provisions>

7 3. By renumbering as necessary.

JANET PETERSEN